

EXHIBIT A

FILED: NEW YORK COUNTY CLERK 01/18/2013

INDEX NO. 156582/2012

NYSCEF DOC. NO. 2

RECEIVED NYSCEF: 01/18/2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

INDEX NO. 156582/2012

Plaintiff,

-against-

VERIFIED COMPLAINT

THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, P.O. John/Jane BENSON,
TAX ID #942897, actual first name unknown (individually),
POLICE OFFICERS "JOHN/JANE DOES" (the named
being fictitious, and who are employees of the New York
City Police Department who are not yet identified),

Defendants.

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, JOSEPH MIDDLETON, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. The defendant THE NEW YORK CITY POLICE DEPARTMENT, at all times herein mentioned, was and still is a municipal corporation organized and existing under the laws of the State of New York.
4. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, at all times herein mentioned was and still is a public authority organized and existing under the laws of the State of New York.
5. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, at all times

herein mentioned, was and still is a domestic municipal agency organized and existing under the laws of the State of New York.

6. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, at all times herein mentioned was and still is a department of the defendant THE CITY OF NEW YORK.

7. On or about June 25, 2011, the defendant P.O. John/Jane BENSON was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer acting under the color of law.

8. Upon information and belief, P.O. John/Jane BENSON was assigned to the 32nd Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. On or about June 25, 2011, the defendants POLICE OFFICERS "JOHN/JANE DOES" were citizens of the United States and the State of New York and were employed by the NYPD as police officers.

10. Upon information and belief, Officers "JOHN/JANE DOES" were assigned to the 32nd Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

11. Prior to the commencement of this action, a notice of claim in writing was served on behalf of JOSEPH MIDDLETON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

12. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of JOSEPH MIDDLETON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

13. Within ninety days (90) of June 25, 2011, a notice of claim in writing was served

on behalf of JOSEPH MIDDLETON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

14. Prior to the commencement of this action, notice of the intention of JOSEPH MIDDLETON to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of JOSEPH MIDDLETON upon THE CITY OF NEW YORK.

15. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

16. A hearing pursuant to General Municipal Law 50-h has been held.

17. This action is commenced within one (1) year and ninety (90) days from June 25, 2011, the date the accident as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION

18. On June 25, 2011, defendant THE CITY OF NEW YORK owned a certain automobile, bearing license plate number unknown.

19. On June 25, 2011, defendant THE CITY OF NEW YORK was the lessee of a certain automobile, bearing license plate number unknown.

20. On June 25, 2011, defendant THE CITY OF NEW YORK was the lessor of a certain automobile, bearing license plate number unknown.

21. On June 25, 2011, defendant THE CITY OF NEW YORK was the registered owner of a certain automobile, bearing license plate number unknown.

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32. On June 25, 2011, defendant P.O. John/Jane BENSON was the operator of that certain automobile, bearing license plate number unknown.

33. On June 25, 2011, the automobile bearing license plate number unknown was being operated by defendant P.O. John/Jane BENSON with the express knowledge and

consent of its owner.

34. On June 25, 2011, the automobile bearing license plate number unknown was being operated by defendant P.O. John/Jane BENSON while in the course of business of its owner and/or in the scope of employment.

35. On June 25, 2011, defendant POLICE OFFICERS "JOHN/JANE DOES" was the operator of that certain automobile, bearing license plate number unknown.

36. On June 25, 2011, the automobile bearing license plate number unknown was being operated by defendant POLICE OFFICERS "JOHN/JANE DOES" with the express knowledge and consent of its owner.

37. On June 25, 2011, the automobile bearing license plate number unknown was being operated by defendant POLICE OFFICERS "JOHN/JANE DOES" while in the course of business of its owner and/or in the scope of employment.

38. That at all times hereinafter mentioned the roadways known as West 136th Street and 7th Avenue, New York, New York were public roadways and thorough fares in common use by the residents of the State of New York and others.

39. On June 25, 2011, the plaintiff was operating a dirt bike on Seventh Avenue at or near its intersection with West 136th Street, New York.

40. On June 25, 2011, the vehicle operated by the defendant P.O. John/Jane BENSON came in contact with the dirt bike operated by the plaintiff JOSEPH MIDDLETON, at or near West 136th Street and 7th Avenue, New York, New York.

41. On June 25, 2011, the vehicle operated by the defendant POLICE OFFICERS "JOHN/JANE DOES" came in contact with the dirt bike operated by the plaintiff JOSEPH MIDDLETON, at or near West 136th Street and 7th Avenue, New York, New York.

42. That at the aforementioned time and place the defendants were negligent, reckless, and careless in the ownership, operation, management, maintenance and control of the aforescribed motor vehicle in that defendants operated the aforescribed motor vehicle in reckless disregard for the safety of others; in that defendants operated the aforescribed motor vehicle at a dangerous rate of speed under the circumstances; said vehicle was not under proper control and management; defendant failed to steer, maneuver and keep a proper lookout so as to avoid the accident; defendants permitted said vehicle to be improperly and/or defectively equipped with good and sufficient brakes and other necessary equipment and/or failed to properly apply the same at the time of said accident; in these and all other premises failed to observe the applicable statutes, ordinances, rules and regulations pertaining to the operation of motor vehicle upon the public highway.

43. That as a result of the defendants' negligence, plaintiff was caused to sustain serious personal injuries and was rendered sick, sore, lame and disabled, experiencing mental anguish, great pain and suffering and has remained so since said occurrence. Upon information and belief, plaintiff suffered permanent injuries, as such will continue to so suffer in the future. Plaintiff was required to seek medical treatment and has been compelled to expend money and incur obligations for physicians services and medical expenses for care and treatment of said injuries. Upon information and belief, plaintiff will be compelled to expend additional sums of money and incur further obligations in the future, for additional physicians services and medical expense for the further care and treatment of said injuries. Plaintiff has been confined to home and bed and has sustained "serious injury" as defined in Section 5102(d) of the Insurance Law of the State of New York.

44. That by reason thereof, plaintiff is entitled to recover for non-economic loss and

for such economic losses as are not included within the definition of basic economic loss as set forth in Section 5102(a) of the Insurance Law of the State of New York.

45. That plaintiff is a "covered person" as defined by Section 5102, Subdivision 3, of the Insurance Law of the State of New York.

46. That the foregoing accident and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence and culpable acts and conduct on the part of the defendants above mentioned without any negligence on the part of the plaintiff contributing thereto.

47. As a result of the foregoing, the plaintiff sustained serious personal injuries as defined in Section 5102(d) of the Insurance Law of the State of New York, and/or economic loss greater than basic economic loss as defined in Section 5102(a) of the Insurance Law of the State of New York.

48. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

49. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

50. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 49, inclusively with the same force and effect as if set forth fully and at length set forth herein.

51. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff JOSEPH MIDDLETON was placed in

apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

52. Due to the foregoing, plaintiff JOSEPH MIDDLETON is entitled to damages

AS AND FOR A THIRD CAUSE OF ACTION

53. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 52, inclusively with the same force and effect as if set forth fully and at length set forth herein.

54. The Plaintiff JOSEPH MIDDLETON was caused to lose control of his dirt bike when it was struck in the rear by the aforementioned motor vehicle being operated by members of the NYPD, including the individually named defendants herein.

55. The striking of plaintiff's dirt bike by the defendants caused the bike and the plaintiff to strike a pole at the corner of the intersection resulting in claimant being thrown from the bike sustaining serious personal injuries.

56. Plaintiff JOSEPH MIDDLETON was caused to suffer severe personal injuries.

57. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

58. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, defendant P.O. John/Jane BENSON and POLICE OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

59. The conduct and injuries complained of herein ensued without any negligent or

culpable conduct on the part of the plaintiff JOSEPH MIDDLETON.

60. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

61. Due to the foregoing, plaintiff JOSEPH MIDDLETON is entitled to damages

AS AND FOR A FOURTH CAUSE OF ACTION

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 61, inclusively with the same force and effect as if set forth fully and at length set forth herein.

63. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

64. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care.

65. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To be entitled to the free exercise of due process without wrongful restraint

by police officers acting under color of law;

- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law.

66. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION

67. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 66, inclusively with the same force and effect as if fully and at length set forth herein.

68. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

69. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

70. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant

CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

71. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

72. All defendants named herein are derivatively liable for the acts of each other.

73. This action comes within one or more of the exceptions set forth in CPLR 1602.

74. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SIXTH CAUSE OF ACTION

75. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 74, inclusively with the same force and effect as if fully and at length set forth herein.

76. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

77. At all relevant times, the defendant CITY was responsible for the training of its

police officers, and more particularly, defendants P.O. John/Jane BENSON and OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

78. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

79. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff JOSEPH MIDDLETON.

80. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

81. All defendants named herein are derivatively liable for the acts of each other.

82. This action comes within one or more of the exceptions set forth in CPLR 1602.

83. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SEVENTH CAUSE OF ACTION

84. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of

Paragraphs 1 through 83, inclusively with the same force and effect as if fully and at length set forth herein.

85. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

86. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

87. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and

h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

88. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

89. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

90. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of his privacy and liberty, has been adversely affected in his employment and in his ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for his physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

91. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive

damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

92. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiff demands judgment awarding damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: New York, New York
January 7, 2013


By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Suite 1200
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

INDEX NO. 156582/2012

Plaintiffs

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, P.O. John/Jane BENSON,
TAX ID #942897, actual first name unknown (individually),
POLICE OFFICERS "JOHN/JANE DOES" (the named being
fictitious, and who are employees of the New York City
Police Department who are not yet identified),

Defendants.

STATE OF NEW YORK)

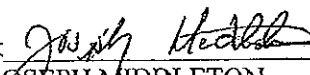
) ss.:

COUNTY OF NEW YORK)

JOSEPH MIDDLETON, being duly sworn, deposes and says:

That I am the plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof and the same is
true to the best of my knowledge, except as to those matters herein stated to be alleged upon
information and belief and that as to those matters, I believe them to be true.

x 
JOSEPH MIDDLETON

Sworn to before me this

7th day of January, 2013


NOTARY PUBLIC

LAURA HAMILTON
Notary Public, State of New York
No. 01HA6014219
Qualified in Westchester County
Commission Expires October 12, 2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

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Plaintiff

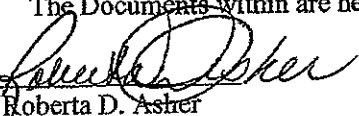
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CITY OF NEW YORK, P.O. John/Jane BENSON,
TAX ID #942897, actual first name unknown (individually),
POLICE OFFICERS "JOHN/JANE DOES" (the named being fictitious,
and who are employees of the New York City Police Department
who are not yet identified),

Defendants.

VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: 

Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Suite 1200

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk of the
within named Court on , 2012.

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of the
of the within named Court, at , New York, on , 2012, at 9:30 A.M.

Dated:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

INDEX NO. 156582/2012

Plaintiff,

-against-

**AMENDED
VERIFIED COMPLAINT**

THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, P.O. CHRISTOPHER BENSON,
TAX ID #947897, actual first name unknown (individually),
POLICE OFFICERS "JOHN/JANE DOES" (the named
being fictitious, and who are employees of the New York
City Police Department who are not yet identified),

Defendants.

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, JOSEPH MIDDLETON, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.
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5. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, at all times

herein mentioned, was and still is a domestic municipal agency organized and existing under the laws of the State of New York.

6. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, at all times herein mentioned was and still is a department of the defendant THE CITY OF NEW YORK.

7. On or about June 25, 2011, the defendant P.O. CHRISTOPHER BENSON was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer acting under the color of law.

8. Upon information and belief, P.O. CHRISTOPHER BENSON was assigned to the 32nd Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. On or about June 25, 2011, the defendants POLICE OFFICERS "JOHN/JANE DOES" were citizens of the United States and the State of New York and were employed by the NYPD as police officers.

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15. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

16. A hearing pursuant to General Municipal Law 50-h has been held.

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consent of its owner.

34. On June 25, 2011, the automobile bearing license plate number unknown was being operated by defendant P.O. CHRISTOPHER BENSON while in the course of business of its owner and/or in the scope of employment.

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37. On June 25, 2011, the automobile bearing license plate number unknown was being operated by defendant POLICE OFFICERS "JOHN/JANE DOES" while in the course of business of its owner and/or in the scope of employment.

38. That at all times hereinafter mentioned the roadways known as West 136th Street and 7th Avenue, New York, New York were public roadways and thorough fares in common use by the residents of the State of New York and others.

39. On June 25, 2011, the plaintiff was operating a dirt bike on Seventh Avenue at or near its intersection with West 136th Street, New York.

40. On June 25, 2011, the vehicle operated by the defendant P.O. CHRISTOPHER BENSON came in contact with the dirt bike operated by the plaintiff JOSEPH MIDDLETON, at or near West 136th Street and 7th Avenue, New York, New York.

41. On June 25, 2011, the vehicle operated by the defendant POLICE OFFICERS "JOHN/JANE DOES" came in contact with the dirt bike operated by the plaintiff JOSEPH MIDDLETON, at or near West 136th Street and 7th Avenue, New York, New York.

42. That at the aforementioned time and place the defendants were negligent, reckless, and careless in the ownership, operation, management, maintenance and control of the aforescribed motor vehicle in that defendants operated the aforescribed motor vehicle in reckless disregard for the safety of others; in that defendants operated the aforescribed motor vehicle at a dangerous rate of speed under the circumstances; said vehicle was not under proper control and management; defendant failed to steer, maneuver and keep a proper lookout so as to avoid the accident; defendants permitted said vehicle to be improperly and/or defectively equipped with good and sufficient brakes and other necessary equipment and/or failed to properly apply the same at the time of said accident; in these and all other premises failed to observe the applicable statutes, ordinances, rules and regulations pertaining to the operation of motor vehicle upon the public highway.

43. That as a result of the defendants' negligence, plaintiff was caused to sustain serious personal injuries and was rendered sick, sore, lame and disabled, experiencing mental anguish, great pain and suffering and has remained so since said occurrence. Upon information and belief, plaintiff suffered permanent injuries, as such will continue to so suffer in the future. Plaintiff was required to seek medical treatment and has been compelled to expend money and incur obligations for physicians services and medical expenses for care and treatment of said injuries. Upon information and belief, plaintiff will be compelled to expend additional sums of money and incur further obligations in the future, for additional physicians services and medical expense for the further care and treatment of said injuries. Plaintiff has been confined to home and bed and has sustained "serious injury" as defined in Section 5102(d) of the Insurance Law of the State of New York.

44. That by reason thereof, plaintiff is entitled to recover for non-economic loss and

for such economic losses as are not included within the definition of basic economic loss as set forth in Section 5102(a) of the Insurance Law of the State of New York.

45. That plaintiff is a "covered person" as defined by Section 5102, Subdivision 3, of the Insurance Law of the State of New York.

46. That the foregoing accident and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence and culpable acts and conduct on the part of the defendants above mentioned without any negligence on the part of the plaintiff contributing thereto.

47. As a result of the foregoing, the plaintiff sustained serious personal injuries as defined in Section 5102(d) of the Insurance Law of the State of New York, and/or economic loss greater than basic economic loss as defined in Section 5102(a) of the Insurance Law of the State of New York.

48. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

49. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

50. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 49, inclusively with the same force and effect as if set forth fully and at length set forth herein.

51. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff JOSEPH MIDDLETON was placed in

apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

52. Due to the foregoing, plaintiff JOSEPH MIDDLETON is entitled to damages

AS AND FOR A THIRD CAUSE OF ACTION

53. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 52, inclusively with the same force and effect as if set forth fully and at length set forth herein.

54. The Plaintiff JOSEPH MIDDLETON was caused to lose control of his dirt bike when it was struck in the rear by the aforementioned motor vehicle being operated by members of the NYPD, including the individually named defendants herein.

55. The striking of plaintiff's dirt bike by the defendants caused the bike and the plaintiff to strike a pole at the corner of the intersection resulting in claimant being thrown from the bike sustaining serious personal injuries.

56. Plaintiff JOSEPH MIDDLETON was caused to suffer severe personal injuries.

57. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

58. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, defendant P.O. CHRISTOPHER BENSON and POLICE OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

59. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff JOSEPH MIDDLETON.

60. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

61. Due to the foregoing, plaintiff JOSEPH MIDDLETON is entitled to damages

AS AND FOR A FOURTH CAUSE OF ACTION

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 61, inclusively with the same force and effect as if set forth fully and at length set forth herein.

63. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

64. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care.

65. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;

- e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law.

66. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION

67. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 66, inclusively with the same force and effect as if fully and at length set forth herein.

68. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

69. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

70. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in

accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

71. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

72. All defendants named herein are derivatively liable for the acts of each other.

73. This action comes within one or more of the exceptions set forth in CPLR 1602.

74. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SIXTH CAUSE OF ACTION

75. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 74, inclusively with the same force and effect as if fully and at length set forth herein.

76. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

77. At all relevant times, the defendant CITY was responsible for the training of its police officers, and more particularly, defendants P.O. CHRISTOPHER BENSON and OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

78. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

79. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff JOSEPH MIDDLETON.

80. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

81. All defendants named herein are derivatively liable for the acts of each other.

82. This action comes within one or more of the exceptions set forth in CPLR 1602.

83. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SEVENTH CAUSE OF ACTION

84. Plaintiff repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 83, inclusively with the same force and effect as if fully and at length set forth herein.

85. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

86. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

87. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;

g. To not have excessive force used against him by police officers acting under color of law; and

h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

88. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

89. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

90. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of his privacy and liberty, has been adversely affected in his employment and in his ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for his physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

91. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all

the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

92. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiff demands judgment awarding damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: New York, New York
January 7, 2013


By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Suite 1200
New York, New York 10038
(212) 227-5000

JOSEPH MIDDLETON,

INDEX NO. 156582/2012

Plaintiffs

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, P.O. John/Jane BENSON, TAX ID #942897, actual first name unknown (individually), POLICE OFFICERS "JOHN/JANE DOES" (the named being fictitious, and who are employees of the New York City Police Department who are not yet identified),

Defendants.

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

JOSEPH MIDDLETON, being duly sworn, deposes and says:

That I am the plaintiff in the within action.

I have read the foregoing Amended Complaint and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and that as to those matters, I believe them to be true.

x Joseph Middleton
JOSEPH MIDDLETON

Sworn to before me this
7 day of January 2013

NOTARY PUBLIC

LAURA HAMILTON
Notary Public, State of New York
No. 01HA6014219
Qualified in Westchester County
Commission Expires October 12, 2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

INDEX NO. 156582/2012

Plaintiff

-against-

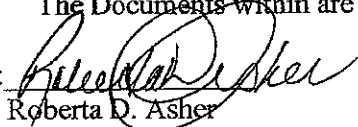
THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, P.O. CHRISTOPHER BENSON,
TAX ID #947897, actual first name unknown (individually),
POLICE OFFICERS "JOHN/JANE DOES" (the named being fictitious,
and who are employees of the New York City Police Department
who are not yet identified),

Defendants.

AMENDED VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By:


Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Suite 1200

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk of the
within named Court on , 2012.

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of the
of the within named Court, at , New York, on , 2012, at 9:30 A.M.

Dated:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

Plaintiff,

-against-

THE NEW YORK CITY POLICE DEPARTMENT,
THE CITY OF NEW YORK, P.O. CHRISTOPHER
BENSON, TAX ID #947897, actual first name unknown
(individually), POLICE OFFICERS "JOHN/JANE DOES"
(the names being fictitious, and who are employees of the
New York City Police Department who are not yet
identified),Defendants.

FILED:

INDEX NO. 156582/2012

Plaintiff designates New York
County as the place of trial**AMENDED
S U M M O N S
WITH NOTICE**The basis of venue is
the County in which the cause of
action arose.**To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to APPEAR OR answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
January 7, 2013**ASHER & ASSOCIATES, P.C.**
Attorneys for Plaintiff
111 John Street
Suite 1200
New York, New York 10038

(212) 227-5000

THE CITY OF NEW YORK
100 Church Street-4th Floor
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

P.O. CHRISTOPHER BENSON (Tax ID #947897)
1 Police Plaza
New York, New York 10007

NOTICE: The nature of this action is as follows:

To recover money damages for personal injuries, emotional and mental distress, injury

to reputation and character and related damages incurred by and on behalf of plaintiff

JOSEPH MIDDLETON by reason of the negligence, recklessness, carelessness and

intentional conduct of THE CITY OF NEW YORK, THE NEW YORK CITY POLICE

DEPARTMENT, their agents, servants, employees and/or licensees, including but not limited

to P.O. CHRISTOPHER BENSON (Tax ID #947897) on or about June 25, 2011 at

approximately 8:00 p.m., on Seventh Avenue near its intersection with West 136th Street, New

York, New York. Plaintiff's claims against these defendants include assault/battery; violation

of civil rights and negligence.

The relief sought is as follows:

Compensatory and punitive damages in amounts which exceed the jurisdictional limits of all lower courts.

UPON YOUR FAILURE TO APPEAR:

Judgment will be taken against you by default for a sum which exceeds the jurisdictional limits of all lower courts, with interest from June 25, 2011 and the cost of this action.

Dated: New York, New York
January 7, 2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSEPH MIDDLETON,

INDEX NO. 156582/2012

Plaintiff

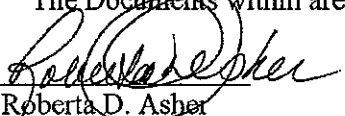
-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, P.O. CHRISTOPHER BENSON,
TAX ID #947897, actual first name unknown (individually),
POLICE OFFICERS "JOHN/JANE DOES" (the named being fictitious,
and who are employees of the New York City Police Department
who are not yet identified),

Defendants.

AMENDED SUMMONS WITH NOTICE

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: 

Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Suite 1200

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

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of the within named Court, at , New York, on , 2012, at 9:30 A.M.

Dated: